



Questionnaire: Rubik - Qube

MN-10007

Deadline to respond: 14 May 2026

The Acquisition

A consortium comprising funds managed by Macquarie Asset Management (**MAM**) and co-investors proposes to acquire 100% of the issued share capital of Qube Holdings Limited (**Qube**) by way of scheme of arrangement (**Acquisition**).

The consortium, through a series of Special Purpose Vehicles (**SPVs**), is to invest in Rubik Australia Holdings Pty Limited (ACN 694 529 149) (**TopCo**) and a wholly owned subsidiary of TopCo, Rubik Australia Pty Limited (**BidCo**), has entered into the scheme implementation deed (**SID**) with Qube.

The consortium is made up of three direct investors, UniSuper (20%), Pontegadea Shareholdings Luxembourg Sàrl (an entity indirectly owned by Pontegadea, holding 15% through a dedicated SPV), and the MAM Box (65%). The MAM Box is an investment vehicle that comprises a number of Macquarie managed funds and large superannuation, sovereign wealth, and global investment vehicles. MAM, through various MAM-managed funds, will have a controlling interest in the MAM Box, which will result in MAM having a controlling interest in Qube.

Other investors that will hold interests in Qube through the MAM Box, as well as existing interests in logistics and infrastructure assets, include Temasek, GIC Private Limited (**GIC**) and CalPERS.

MAM

MAM is the asset management arm of Macquarie Group Limited. MAM manages investments by clients in significant infrastructure assets in Australia (including airports, telecommunication assets, data centres and electricity distributors).

MAM provides investment management services to the trustee of The Infrastructure Fund (**TIF**). TIF holds a 50% interest in the Port of Newcastle. The other 50% stake is held by China Merchants Port Holdings Company Limited.

Qube

Qube is an integrated provider of import and export logistics services, operating more than 200 sites across Australia, New Zealand and Southeast Asia and employs ~10,000 people. Qube's service offering is underpinned by a network of assets including ports, terminals, rail, road and storage infrastructure.

Qube's operations are organised into three divisions: Logistics & Infrastructure (L&I), Ports & Bulk (P&B) and a 50% interest in Patrick Terminals.

Qube is a tenant and port user at the Port of Newcastle. It supplies a range of services at the Port in relation to bulk, breakbulk and general stevedoring

services, rail haulage services and grain export terminal services (through Newcastle Agri Terminal).

Other co-investors

UniSuper

UniSuper already holds ~15% of Qube and, with its additional equity contribution, the Acquisition will result in it increasing its stake by approximately 5%. UniSuper also currently holds an approximate 11% interest in TIF, giving it an indirect look-through interest in the Port of Newcastle of approximately 5.5%. It is also a shareholder in Gardior Pty Ltd (**Gardior**), the trustee appointed to act on behalf of TIF.

Temasek

Temasek is a global investment company headquartered in Singapore with a presence in 9 countries. Temasek will acquire a 12.5% look-through stake in Qube.

Temasek's wholly owned portfolio entity, PSA International Pte. Ltd. (**PSA**), owns BDP Asia Pacific (Australia) Pty Ltd, which is a freight forwarding supplier offering freight, transport and logistics services across Australia. PSA also has a 20% interest in Hutchison Port Holdings Limited, which through Hutchison Ports Australia operates container terminals at Port Botany and Port of Brisbane. Temasek currently has a 6.48% interest in Patrick Terminals. Temasek's wholly owned entity, Heliconia Capital Management (**Heliconia**), manages a fund that holds a majority interest in Pacific International Lines (**PIL**).

GIC

GIC will acquire a 6.59% look-through stake in Qube.

GIC through its affiliate, Buckland Investment Pte Ltd (**Buckland**), has a 12% interest in Pacific National, a rail freight services provider and an 11% interest in Linx Cargo Care, a transportation and logistics company.

CalPERS

Smaller co-investors in the MAM Box include CalPERS, a Californian pension fund, investing through a MAM Controlled Sidecar investment vehicle, which will have a look-through interest in Qube of 2.7%. CalPERS holds an equity stake in the Port of Melbourne of 9.95% which is held via a separate account managed by Queensland Investment Corporation (QIC).

ACCC's assessment

The ACCC is assessing the impact of the Acquisition on competition and is seeking your views. The ACCC invites you to provide submissions or information in response to the questions below by **14 May 2026** via email to mergers@acc.gov.au with the title *Submission re: Rubik – Qube*. The ACCC must complete its assessment within strict statutory timelines which also impacts the time available for consultation.

If you would prefer to speak to a member of the ACCC case team, please email mergers@acc.gov.au with the title *Request for call re: Rubik – Qube*. Someone from the case team will contact you to find a suitable time for a call.

Please note that:

- This request is made in accordance with section 51ABZZD(2)(a) and (c) of the *Competition and Consumer Act 2010* (Cth) (the **Act**). This means that while the ACCC may take into account submissions or information received after the due date, it is not required to do so.
- In responding to the questions below or when providing a submission, please highlight and/or mark any confidential information and indicate why the information is confidential (as brief reasons in footnotes in your response or submission, or in a separate document such as the ACCC's [confidentiality claims template](#)). The standard terms on which the ACCC accepts confidential information are outlined at the end of this document.

Questions for all stakeholders

1. Provide a brief description of your business or organisation, including any commercial relationships with Macquarie Asset Management and/or any of the other direct or indirect co-investors in the Acquisition and/or Qube.

2. Outline any concerns regarding the impact of the Acquisition on competition, at the Port of Newcastle or elsewhere in Australia where Qube operates, including as a result of any minority interest in Qube that will be acquired by any of the investors.

3. Provide any additional information or comments that you consider relevant to the ACCC's assessment of the Acquisition.

Questions for stakeholders at the Port of Newcastle

Although Macquarie Asset Management does not have a direct ownership interest in the Port of Newcastle, the ACCC is considering the extent to which Macquarie Asset Management could control or influence operations at the Port of Newcastle following the Acquisition and whether that may give rise to competition concerns. Please have regard to this issue in your responses to the questions below, where possible.

4. Identify alternative suppliers of bulk/breakbulk/general stevedoring services at the Port of Newcastle where Qube operates and explain how their service offering could be affected if Macquarie Asset Management and its co-investors own Qube. Please provide examples where possible.

5. Identify alternative suppliers of grain export terminal services at the Port of Newcastle and explain how their service offering could be affected if Macquarie Asset Management and its co-investors own Qube. Please provide examples where possible.

6. Identify alternative suppliers of rail haulage services at the Port of Newcastle and explain how their service offering could be affected if Macquarie Asset Management and its co-investors own Qube. Please provide examples where possible.

7. Please provide examples of any commercially sensitive information regarding Qube's competitors that the Port of Newcastle can access, and explain how Qube's access to that information because of Macquarie Asset Management having a controlling interest in Qube could harm those competitors or benefit Qube's business at the Port of Newcastle.

Confidentiality of responses

During the ACCC's assessment of a notified acquisition, the ACCC may receive information that is properly regarded as being confidential, and which is provided to the ACCC in confidence. The ACCC is committed to treating this information responsibly and in accordance with the law. The ACCC understands the importance of confidentiality to parties involved in a notified acquisition, as well as to third parties that provide information to the ACCC.

The standard terms on which the ACCC accepts confidential information are:

- there is no restriction on the internal use, including future use, that the ACCC may make of the confidential information consistent with the ACCC's statutory functions
- confidential information may be disclosed to the ACCC's external advisors and consultants on condition that each such advisor or consultant will be informed of the obligation to treat the information as confidential, and
- the ACCC may disclose the confidential information to other third parties if compelled by law or in accordance with section 155AAA of the Act. This includes disclosures

made in the performance of official duties or functions, which include transparency requirements which are part of the merger control regime.

For further information on confidentiality, see the ACCC's [interim merger process guidelines](#).